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## Introduction: The Land Question and Agricultural Transformation in Sub-Saharan Africa

New types of crops and new methods of agriculture are transforming the systems of tenure; land is being commercialized; the basis of holding land is changing from one of community and custom to one of individualism and contract; wealthy native capitalists are appearing; agricultural debt is already in full swing, and many peasants are becoming labourers on lands which were once their own.

—C. K. Meek, 1946

Together with *histoire des femmes* land disputes are the main issue dealt with by the tribunals.

—A. Köbben, 1963

### Introduction

Until recently, there has been little discussion in the African agrarian crisis literature on the issues of access to, control over, and, to a lesser extent, management of rural land.<sup>1</sup> The relative neglect of this subject is the result of the predominance of two related approaches to the relationship between land tenure systems and agricultural productivity in sub-Saharan Africa. The first is the common view that in comparison to population-land densities in Asia and Latin America, sub-Saharan Africa is a relatively land abundant region. Labor shortages are generally perceived to be a more critical constraint to expanding agricultural output than land availability. The second approach similarly minimizes the role tenure systems play as a constraint on increasing agricultural productivity by arguing that "customary" or indigenous systems have generally accommodated the needs of peasant farmers seeking access to land.<sup>2</sup>

Some recent studies on landholding patterns in Africa challenge these common views. Cohen argues that population densities are much higher than the frequently cited 10 to 30 persons per square kilometer when nonarable land is excluded from the equation. The fact that rural population growth rates have been higher than the expansion in area under cultivation suggests that pressures are greater than generally thought.

especially on the best lands.<sup>3</sup> Kenneth Swindell and T.B. Mamman's research on land expropriation and accumulation in the Sokoto region of northern Nigeria suggests that landlessness is a growing problem in the peripheries and hinterlands of urban areas.<sup>4</sup> The notion that indigenous tenure systems are sufficiently flexible to accommodate changes in production is the subject of considerable debate to which I will return below. Suffice it to say here that a large number of recent case studies indicate that in some parts of Africa, access to land is becoming difficult for some groups, especially women, pastoralists, and poor households.<sup>5</sup> A common theme of these studies is that African tenure systems are becoming more and more exclusive as the rights to land are (re-)defined more narrowly in the context of new political, social, and economic conditions. In short, Africa is no longer perceived to be an exception to the trends in land concentration and scarcity typical of other Third World regions.

Colonial administrators, African elites, and foreign aid donors have historically viewed indigenous landholding systems as obstacles to increasing agricultural output.<sup>6</sup> These groups have argued that only private, freehold arrangements will provide the investment security necessary to make African agriculture more efficient and productive. Indeed, the World Bank is currently funding a new series of land titling and cadastral projects in sub-Saharan Africa on the assumption that title will confer the necessary security to stimulate agricultural investments and thus increase productivity.<sup>7</sup> The impetus for organizing the conference on land in African agrarian systems was to examine critically such assumptions, especially in light of much recent scholarly research showing that the relationship between security and productivity is complicated by social and political processes that appear to have a greater impact on investments than formal tenure considerations.<sup>8</sup>

The question of whether or not there is a relationship between the current agrarian crisis and access to and control of rural land has been raised but not thoroughly explored.<sup>9</sup> Given the World Bank's renewed interest in tenure issues in its sectoral work and structural adjustment programs, there is a need to transcend its technocratic and theological approaches that posit a direct link between freehold tenure and productivity.<sup>10</sup> The central argument of this volume is that such calls for sweeping tenure changes are misconceived. The notion that tenure reform is the panacea to Africa's agrarian ills is an old idea that ignores critical social dynamics that strongly influence how productive resources are acquired, utilized, contested, and immobilized. Indeed, a major contribution of this volume is the conceptualization of land tenure as a political process. This is most evident in the case studies that document a

variety of conflicts over land rights as a result of government legislation and changing economic and political circumstances. The contributions help to illuminate the extent to which the politics of land access and control present problems to individuals and groups seeking to expand agricultural output.

The case studies are pitched at different scales of analysis. Some focus primarily at the level of the household and community, while others are situated at the national level, as in the discussions on the politics of land reform. Most of the papers seek to integrate these various levels to show how land access, control, and management strategies are embedded in social, political, and economic structures that vary and change over time. Any analysis of the links between landholding patterns and agricultural output must therefore consider tenure systems as "embedded systems."<sup>11</sup> The thrust of this collection is that we need to examine the nature of these embedded systems to understand the dynamics of agricultural change in Africa today.

### Historical Antecedents

Notwithstanding the remarks of C. K. Meek, it is difficult to generalize about the impetus for and direction of change in landholding patterns. The tendency of colonial apologists to project their own (European) models and concepts of land tenure onto African societies has hindered our understanding of development and change in this area. As noted in the following pages, ethnocentric and ideological biases and their attendant political agendas distort much of the literature. Rather than try to determine the major sources of change in tenure regimes, I attempt here a periodization of official efforts to transform indigenous "communal" tenure systems along individual, private lines as a means of expanding agricultural production.<sup>12</sup> I am interested in identifying periods of interest in this type of tenure reform for two reasons. First, such an approach will help to place this book in a larger historical framework. For example, many contemporary pronouncements on the advantages of individualized holdings are echoed in the official colonial record. An examination of this literature enables one to detect the extent of continuity and change in land tenure policies in sub-Saharan Africa. The second objective is theoretical. How can one explain past and present interest in this subject? How have indigenous tenure systems been portrayed over time? What has motivated officials to promote individualized holdings?<sup>13</sup> The following periodization of reform initiatives shows the emergence of an evolutionary model of tenure change and agricultural development that continues to dominate the approaches of contemporary

custom," the interpretation of customary tenure was its narrow, influenced as it was by European notions of proprietary ownership. Far from preserving customary land laws, the search for individual landowners, the redrawing of community boundaries, and the flood of land laws at the turn of the century created new rights and conditions of access that became the subject of considerable dispute.<sup>25</sup> Ironically, this search for tradition and the European interpretation of customary tenure created the conditions for promoting individualized holdings during the next period.

2/ | During the second period (1930–1960), a series of economic and political crises (the Great Depression, World War II, resistance, and decolonization) forced colonial officials to take a closer look at African land use patterns and tenure systems. In repeated efforts to stabilize their regimes during these crises, officials encouraged the expansion and intensification of African agriculture. Despite local differences, a common model of agrarian change in which agricultural progress is measured by the gradual dissolution of "communal tenure" into individual rights in land guided these reformist policies.<sup>26</sup> In the view of colonial officials, like Governor Reste of Côte d'Ivoire, individualization of production was a natural process in which he equated changing social relations of production with "moral emancipation."

It is obvious that we have a great interest in favoring the moral but especially the economic emancipation of the individual so that he [sic] will take a liking for his work and become more conscious of his personal interests. . . . We have a great interest in favoring the constitution of an *indigenous peasantry* of small and middle landowners. This is the goal that we must assign ourselves.<sup>27</sup>

When writing in 1932, Reste's main interest was to create incentives for individual producers to increase their output. In the five-year period 1928 to 1932, custom receipts—the primary indicator of the colony's prosperity—had dropped by three-fifths. The governor's solution was to encourage more goods for export. In his view, paying individual producers instead of chiefs was an important step toward intensifying production. He envisioned the emergence of a peasantry, not unlike the French one, that had a stake in the land and thus an incentive to produce.

It was widely believed by colonial administrators and agricultural service personnel that a major obstacle to realizing production goals was the varied system of customary tenure that they continued to have a hand in creating. Although recognized by many administrators to have social and political advantages, customary tenure was increasingly viewed as an impediment to agricultural growth.<sup>28</sup> The primary complaint was that "traditional tenure" did not provide adequate security to

producers willing to invest in production. That too many people could claim rights to the same parcel of land discouraged land improvements. A second concern was the difficulty in obtaining credit since land could not be mortgaged. According to critics of communal tenure systems, the commercialization of land rights would solve most, if not all, of these production problems.<sup>29</sup>

In eastern and southern Africa, these criticisms were more attenuated. Although some considered individual holdings to be the ideal form of tenure, political reasons discouraged colonial officials from granting freehold status. Some administrators opposed freehold because it would mean the loss of the right to expropriate lands and the ability to regulate agricultural practices in the reserves.<sup>30</sup> Freehold was available to Africans only in the "Native Purchase Areas" of Northern Rhodesia and Kenya and in the Land Settlement Scheme of Swaziland. Elsewhere, they held land as tenants of the state, as in Southern Rhodesia under the Native Land Husbandry Act, or under customary tenure in resettlement areas, as in Tanganyika (Tanzania).<sup>31</sup>

Colonial authorities were particularly reluctant to grant freehold status to Africans in eastern and southern Africa on the grounds that if their agricultural practices went unchecked, they would destroy the land. As early as the 1920s, district officers and agricultural department personnel cited soil erosion in the reserves as a major problem. Typically, officials blamed African farmers and pastoralists for mismanaging the land in the most pejorative terms.<sup>32</sup> The causes most frequently cited to explain the problem were overstocking, agricultural techniques, the fragmentation of landholdings, and high population growth rates. By the 1940s, soil conservation programs were in full swing throughout the region. In South Africa, "betterment and rehabilitation schemes" involved resettlement and restrictions on livestock raising and shifting cultivation. In Tanganyika, "plow rules" and forced conservation works were financed by a special tax levied on maize producers.<sup>33</sup>

The official reaction to soil erosion and the subsequent conservation policies followed the classic blaming-the-victim approach.<sup>34</sup> The fact that a minority of colonial settlers occupied the most fertile land and that the majority of Africans were forced to work marginal soils did not enter the analysis. The land-extensive nature of African agricultural systems in the context of increasing population growth and relative land scarcity resulted, not surprisingly, in overcrowded conditions.<sup>35</sup> Policies such as the prohibition of livestock raising in certain areas, group resettlement, and compulsory conservation work were strongly resented by rural producers. The highly coercive nature of these policies and the fact that European settlers were their major beneficiaries made soil conservation

a major political issue.<sup>36</sup> By the 1950s, African resentment and resistance expressed itself in the abandonment of new settlement areas in Nyasaland and the destruction of contour ridges and terraces in Sukumaland, Tanganyika.<sup>37</sup>

As Okoth-Ogendo underlines in his contribution, colonial soil conservation policies were “diversionary” in that they failed to address the pressures compelling peasants to mismanage natural resources. He argues that they protected the interests of the settler elite to the detriment of the African masses. When one considers how land use regulations served to control people, the ideological content of these policies also appears to be important. Meek’s comments lucidly reveal how conservation ideology legitimated continued state control over the reserve lands.

The wide demand for freehold may be regarded as part of the general development of economic individualism. . . . Yet the indiscriminate grant of freehold title may have the most disastrous effects on the welfare of any territory, since it may effectively tie the hands of governments in all schemes of agricultural advance. Ignorant peasants armed with freehold rights may soon destroy the country’s capital. An effective system of State ownership, on the other hand, assures to the community the maintenance of the fertility of the soil, as well as such incremental value as may arise, not from the efforts of the occupiers [*sic*], but from the development of the country as a whole.<sup>38</sup>

Such views reflect the efforts of colonial apologists to legitimate the colonial status quo. They also lend support to David Anderson and Richard Grove’s point that “the exclusion or the social control of people has been the pragmatic guiding principle if not the original motivation of these (conservation) policies.”<sup>39</sup>

The Master Farmer Schemes of Rhodesia and Nyasaland in the 1950s indicate that the colonial position on the relative merits of freehold tenure was ambivalent. While Meek’s statements highlight the conservative settler view toward individual tenure, more liberal positions were held by officials seeking to nurture a class of prosperous African farmers during the period of decolonization. The Master Farmer Schemes were built on the idea that individualized holdings combined with conservation training would result in greater agricultural output and higher standards of living. Freehold tenure was viewed as providing the security necessary to stimulate increased investment in the land.<sup>40</sup>

In summary, this second period shows evidence of a major policy shift from supporting customary tenure arrangements for largely political reasons during the first period to a growing commitment to individualized holdings for mainly economic reasons. Although this new position was not consistent, especially on the issue of conservation, a change in think-

ing about the relative strengths of individual versus communal holdings was particularly evident in discussions on expanding African agricultural output. Officials perceived the apparent movement toward individualization of land rights in commercial cropping areas as an evolutionary trend. It was a unilinear transition consisting of a gradual shift from customary to individual rights in land. Moreover, this transition could be encouraged by introducing land laws to promote individualization and expanded production. On the eve of independence, this evolutionary model of agrarian change had become a major policy option for African leaders in their quest for economic development.

3) The third period of interest in transforming African customary tenure systems into freehold arrangements begins in the early 1980s after a hiatus of nearly twenty years. Yet the 1960s and 1970s were by no means a quiet period. They may rightfully be labeled the land reform decades, a period in which dozens of independent African governments enacted new land legislation. These initiatives reflected considerable continuity with the past in three respects. First, as a number of case studies in this volume note, many postcolonial governments simply retained or revised colonial land laws. Second, ideologues everywhere continued to perceive indigenous tenure systems as hindering the formation of agrarian structures that were both highly productive and congruent with doctrinal principles. To capitalist-oriented regimes, the now-familiar litany of criticisms ranging from farmer insecurity to environmental degradation were basic assumptions behind land laws promoting freehold tenure. To socialist-inclined governments, indigenous tenure systems were condemned not only as inefficient but also as conducive to capitalist class formation if allowed to evolve on their own. Third, the new land laws reflected what Okoth-Ogendo refers to as the “broad-spectrum approach” of land reform. Policymakers during these two decades held the common assumption that a wide range of agrarian ills could be treated with the land reform pill. The curative powers of such prescriptions were, and continue to be, based on the problematic view that land reform is in itself sufficient to transform production structures. This theme is more closely examined by Okoth-Ogendo, Dessalegn Rahmato, Merle Bowen, and Ranger in Part III, on radical agrarian reform.

The timing of this renewed interest in African land tenure in the 1980s agrees with the thesis that attention to the subject is linked to official efforts to resolve economic and specifically agricultural problems. Although the data are highly contentious, agricultural production appears to have stagnated in the 1960s and 1970s in sub-Saharan Africa.<sup>41</sup> None other than the president of the World Bank, Robert McNamara, admitted in his famous Nairobi speech in September 1973 that two decades of

development assistance had not measurably changed the lot of the rural poor in the Third World. In fact, their conditions had deteriorated in many areas, notably, in Africa where famine peaked in 1973 in the Sahelian region. The greater emphasis given to rural development during the McNamara years (1968–1981) involved few serious attempts at land reform.<sup>42</sup> Between 1975 and 1981, just 7 percent of the World Bank's agricultural and rural development projects contained landholding and titling components, most of which took place in Latin American countries. Since 1982, the World Bank and other lending agencies have dramatically increased funding to land-related projects in all regions.<sup>43</sup> The greater attention to land tenure systems in this third period must be viewed in the context of the crisis in African agriculture. The outpouring of analytical and prescriptive literature on food and rural development has brought the role of land tenure systems to the forefront of African studies. If recent reviews of the literature are suggestive, there is much continuity in the themes, issues, and approaches between the second and third periods.<sup>44</sup>

An important book bridging the two periods is *African Agrarian Systems*, edited by Daniel Biebuyck. Its main contribution lies in detailed studies of indigenous tenure systems—a topic that was relatively neglected by Meek and Hailey in their surveys of colonial land policies. In contrast to the stereotyping of custom common in these books,<sup>45</sup> the Biebuyck volume emphasizes local variability and the influence of both endogenous and exogenous factors in the making of different systems. Many of the contributors, especially Paul Bohannon and Polly Hill, offer trenchant critiques of the assumptions of the tenure evolution model and call for less ethnocentric concepts and approaches.<sup>46</sup> Bohannon stresses the social nature of land access and control, a recurring theme in recent studies. He urges scholars and administrators alike to view land tenure systems not only in terms of relations between people and land (the “man-thing unit”) but also among people (the “man-man unit”).<sup>47</sup>

Despite its greater sensitivity to local variability in indigenous tenure systems, the Biebuyck volume echoes Meek's and Hailey's emphasis on the relative strengths of “individual” versus “communal” systems in improving agricultural output. Audrey Richards's and Charles White's contributions, for example, examine the individualization of landholdings in Buganda and Northern Rhodesia.<sup>48</sup> White's study, in particular, reflects the influence of modernization theory in its depiction of freehold tenures as “modern” and communal systems as exhibiting “certain undeveloped features.” He argues that continuous cultivation, cash cropping (especially of perennial crops) and population pressure are the three most important factors accounting for “individualized rights”—that is, a

land market. “Continuous cultivation is considered to be a backward agricultural system since it inhibits the ‘the full emergence of land rights of individuals.’”<sup>49</sup> White even ventures into applied anthropology when he hypothesizes that freehold tenure is likeliest to emerge among patrilineal and virilocal societies and least likely to emerge among matrilineal and uxuorilocal groups. In short, the evolutionary model of agrarian change is well represented in Biebuyck, albeit cloaked in the terminology of the anthropology of modernization.

The land tenure studies of the 1980s continue to give considerable attention to the transition between communal and individual tenure regimes and to linkages between land degradation and landholdings. New research directions focus on inter- and intrahousehold struggles over land with emphasis on gender inequalities in landholdings and land concentration by indigenous elites.

Discussions on the transition between indigenous and freehold tenure appear in the literature in two variants. The first encompasses a number of analyses focusing on the apparent shift toward greater individualization of rights in land where land pressure results in relative scarcity. A variety of forces are cited, often in a checklist fashion, to explain this process. Both John Cohen and Robert Hecht follow Biebuyck's general argument, in which population pressure and expanding agricultural commercialization lead to greater individualization of land rights.<sup>50</sup> However, they present more sophisticated arguments. Hecht shows that individualization is not merely a response to changing demographic and economic conditions but also reflects the historically shifting strategies of landowners to strengthen their political and economic position in the community. Cohen similarly urges caution in citing such factors as explanatory variables. He notes that “the causes of population increases rather than the increases themselves may be more important in understanding the nature of land-tenure changes.”<sup>51</sup> Despite these caveats and insights, the arguments remain unilinear and constructed on ideal conceptual types of corporate and individual tenures.

The second variant of the transition debate focuses on the relative efficiency of individual versus communal tenure systems in increasing agricultural output. This largely technocratic position is taken by the French geographer, Pierre Gourou, who contends that private, individual tenure arrangements will lead to greater security, efficiency, and productivity in Africa.

Communal tenure protects the individual from indigence. But it is an obstacle to technical progress. If the agricultural future of tropical Africa is intensification, then it can hardly be conceived of occurring outside of private property. How

can a farmer invest labor and capital into his field, he is not the owner? Improvements, fertilizers, terracing, drainage, irrigation, all this cannot be realized outside of private and hereditary property.<sup>52</sup>

In its study on the African economic crisis, the World Bank similarly argues that private property is a key incentive for farmers to invest in land improvements. It invokes the evolutionary model of tenure change and agricultural growth to make its case for redefining land rights and funding land registration projects in sub-Saharan Africa: "Since countries (and regions) are at *different stages of this transition*, Africa has diverse and changing land rights. Agricultural modernization combined with population pressure will make land titling necessary."<sup>53</sup>

The critics of this neomodernization model argue that the data are too weak to support such claims.<sup>54</sup> Angelique Haugerud shows that among the Embu of Kenya, land titling has not led to significant investments in agriculture. Although credit is available to titleholders, funds are most often channeled into off-farm investments such as charcoal production, children's education, and land speculation.<sup>55</sup> Further evidence from Ghana and Rwanda indicates that land titling has little effect on productivity.<sup>56</sup> Raymond Noronha argues that neither communal nor individual systems have a direct bearing on agricultural output but that more important variables appear to be security of possession, access to other productive resources (labor, credit, inputs) and institutional rents (subsidies and extension services), and managerial capability.<sup>57</sup> John Bruce's contribution in this volume (chap. 1) evaluates the merits of the opposing views in this debate.

Notwithstanding these findings, it is still widely believed that individual ownership is one key to solving much of Africa's economic and environmental problems; in the meantime, the transition toward it produces much uncertainty, which further exacerbates the situation. This view is well expressed by Paul Harrison in *The Greening of Africa*:

Most of Africa is in the transition phase between communal and individual ownership. It is a no-man's land in which farmers have permanent rights over an area, without legal title to it. Their tenure is uncertain. They cannot offer their holding as collateral for loans, because it is not fully theirs to forfeit if they default. They cannot be sure they will still be farming the same areas in ten or twenty years' time, and so they are more reluctant to invest in permanent improvements to the land, from tree planting to soil conservation works.<sup>58</sup>

The links between land degradation and landholding patterns have received considerable attention since the 1977 U.N. conference on desertification in Africa. Desertification, like coup d'états and famines, has become emblematic of Africa in the distorted news coverage of the

continent. Popular writers like Lloyd Timberlake and Paul Harrison devote chapters to "the desertification problem" in their recent books in which they link land degradation to insecurity of tenure.<sup>59</sup> With one important difference, Timberlake presents what Piers Blaikie labels the "classic or colonial approach to erosion and conservation" with his emphasis on environmental factors (soils and climate), mismanagement of the environment, overpopulation, and market integration.<sup>60</sup> In the colonial view, the insufficient development of cash cropping impeded soil conservation. Only when farmers produced for the market would they adopt such "modern" agricultural techniques as soil conservation.<sup>61</sup> Timberlake departs from the classic approach by suggesting that market involvement may accelerate environmental degradation when deteriorating terms of trade push peasants to intensify production on marginal soils. However, he is vague on the nature of this involvement and leaves one with little understanding about the possible links between environmental mismanagement, population growth, and market involvement.<sup>62</sup>

Communal tenure systems continue to be cited as a structural feature of environmental degradation in Africa. In an overview of the anti-pastoralist literature, Michael Horowitz and Peter Little note that their long-standing condemnation by colonialists for destroying the environment is reiterated today in the discourse on common property resources, which blames herders for abusing the privilege of grazing their (private) animals on (communal) ranges by overstocking. The resulting "tragedy of the commons" becomes manifest in land degradation.<sup>63</sup> An often-proposed solution is the privatization of the commons.<sup>64</sup>

Lionel Cliffe notes a similar recourse to the same paradigm in the "conservationist orthodoxy" of Zimbabwe. The degradation of grazing lands there is in part explained by the open access to rangelands by residents of the so-called communal areas. Zimbabwean bureaucrats perceive this free access to pasture and water as a structural problem inhibiting "improved land use."<sup>65</sup> Ranger's discussion (chap. 13) illuminates the opposing sides and issues in this debate.

As many critics have pointed out, the tragedy of the common perspective is flawed by its assumptions about "unregulated" access to productive resources and the corollary that "improved" land use practices will result from privatization.<sup>66</sup> There is much historical evidence showing that pastoralists have regulated access to rangelands, as in the case of the interior delta of the Niger during the early nineteenth century.<sup>67</sup> Horowitz and Little rightly challenge the view that pastoralists are inherently self-seeking individuals with no responsibilities and obligations in the communities to which they belong.

Almost all of the anthropological literature on pastoralism points to restrictions on both access and use of "communal" ranges, and widespread claims on the use and disposition of "private" livestock. In other words, pastoralists, no less than anyone else, live in communities, and these communities have moral bases which do not allow for unchecked personal aggrandizement at the expense of one's fellows.<sup>68</sup>

The second assumption, that privatization will ensure sound land use management, has also been effectively refuted by many authorities. Bruce notes in this volume (chap. 1) that the American Dust Bowl is a prime example of where this logic breaks down. Other observers have pointed to evidence of land degradation in areas of Botswana, Lesotho, and Kenya where privatization of rangelands has occurred.<sup>69</sup> Pauline Peters proposes a more appropriate analytic framework when she argues for viewing commons systems as embedded systems characterized by "multiple or overlapping rights" and by a "combination of individual and group claims."<sup>70</sup> Land rights are rooted not only in changing economic and political structures but also in the interpretation and transformation of meanings associated with access to common property resources. As Peters argues, "Competition among rights and claims takes place through competition in meanings. These are assigned, accepted, and imposed: whose right, which meaning, whose definition are critical questions in deciphering changes in land rights."<sup>71</sup> Michael Watts's paper (chap. 6) shows how such questions are central to understanding the politics of access to and management of irrigated rice land in The Gambia.

A third group of studies that emerged in the 1980s examines the nature and implications of contemporary access and control patterns on land concentration, socioeconomic differentiation, and gender relations of production. The results of this predominantly village-level fieldwork challenge many of the simplistic assumptions underlying the evolutionary model of tenure change and agricultural development. They also raise new questions about the relationship between landholding patterns and agrarian change which are pushing the tenure debate out of its evolutionary cul-de-sac.

Sara Berry's work on the privatization and concentration of productive resources in West Africa emphasizes the centrality of social identity and political power in obtaining and defending rights in rural land. She challenges the notion of progressive individualization assumed in the tenure stage model by showing how multiple claims to the same parcel of land result in incomplete privatization of rights in the highly commercialized tree-cropping zones of West Africa.<sup>72</sup> She notes how labor mobilization strategies and inheritance rules frequently lead to situations where there

are "overlapping and open-ended rights" in tree-crop farms. This indeterminacy of ownership often leads to land disputes that are commonly resolved in favor of individuals who wield the greatest political power. Since status is a fundamental basis of political power in Africa, rival claimants in land disputes frequently invest considerable sums to enhance their social position (e.g., finance lavish weddings, obtain locally prestigious titles), to the apparent detriment of agricultural investments.<sup>73</sup> Berry's point is that rights in land are "embedded in multistranded social relationships" that are open to redefinition under changing political, social, and economic circumstances. Land use and rural investment patterns can, in part, be viewed as the result of individual and group strategies to obtain and secure rights to land in these changing contexts.

Jean Davison similarly accentuates the social and political dimensions of landholding rights in Africa in her theoretical discussion on gender relations of production.<sup>74</sup> Specifically, Davison notes that women's access to land is today widely determined by their relationship to men, especially as wives. In the past, this access was not as severely circumscribed since women frequently inherited rights in land from kin. Davison argues that the development of commodity relations during the colonial period led to a restructuring of gender relations in which men benefited from European notions of property in assuming control over cash crop production and primary rights in land. As a result, women are increasingly dependent on their husbands and kin to obtain what are usually secondary rights in land. Even these rights are now being eroded, as many of the case studies in Davison's collection illustrate.<sup>75</sup>

The emphasis given by Berry and Davison to the centrality of power relations in the acquisition of land rights and in the process of social differentiation in West Africa is amplified by other Africanist scholars. For example, Miriam Goheen points to the emergence of new elites in northwestern Cameroon who are able to accumulate land because of their knowledge of national laws and their ability to gain influential positions in local institutions.<sup>76</sup> These "modern big men" profit from the ambiguous coexistence of national and local tenure regimes that, in Paul Harrison's view, only leads to insecurity and land degradation. Further evidence from Kenya and Niger suggests, to the contrary, that relatively wealthy households view uncertain tenure as an opportunity to expand their holdings.<sup>77</sup> These rural elites have their counterparts in urban areas where civil servants, government officials, and merchants acquire rural land through their knowledge, resources, and contacts in government bureaucracies. Allan Hoben accentuates the degree to which the process of rural land concentration by urban elites in Somalia

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depends on their political influence as opposed to their farm managerial capabilities.<sup>78</sup>

Access to registered land, particularly large tracts of new land believed to have development potential, depends on claimants' ability to mobilize a broad range of political and economic resources, rather than on their ability to generate and reinvest profits from agriculture in additional land. In this sense, land accumulation is thus primarily a political rather than an economic process. The successful individual or agency is one that has contacts in the bureaucracy, knowledge of how to "work the system," clan and personal ties with high government officials, access to government credit and equipment, or is able to obtain support from foreign aid agencies.<sup>79</sup>

The accent of these recent studies on the social and political dimensions of land access and control suggests some important relationships between the nature of landholdings and agricultural performance in contemporary Africa. Berry's work takes us the farthest in this direction in her discussion of the implications of overlapping rights in land and incomplete privatization for agricultural investments. However, these recent collections only indirectly address the relationship between the land question and agricultural performance. Their main contribution lies in the detailed examinations of land access and control in terms of gender inequality and concentration. The Davison and Richard Downs and Stephen Reyna volumes have advanced the discussion on indigenous tenure systems by focusing on important inter- and intrahousehold dynamics relating to resource control and use. This work is the first to take a broad look at the links between land tenure regimes and agricultural performance since the Biebuyck volume published nearly thirty years ago.

### Flexibility and Conflict in Indigenous Tenure Systems

One of the basic assumptions held by the tenure evolution theorists is that the progressive commercialization of agriculture inexorably leads to the individualization of rights in land.<sup>80</sup> Cohen questions this view on the grounds that field research shows peasants enjoying considerable individual freedom under corporate tenure systems. He wonders if the supposed shift toward individualization is really not a shift after all but merely a discovery by researchers of "underlying reality."<sup>81</sup>

Bruce's contribution (chap. 1) challenges the major assumptions of indigenous tenure critics with the reality of peasant farmers' rights in land. He systematically analyzes such concerns of reformers as the adequacy of indigenous tenure systems for investment security, efficient

resource allocation, obtaining credit, and land transfers. Bruce acknowledges the importance of these concerns but concludes that in only a few cases do they pose serious problems to African farmers today. He offers practical suggestions in the form of a series of questions that force one to consider nonreform approaches to apparent tenure constraints.

One of the criticisms of indigenous tenure systems discussed by Bruce holds that the absence of land markets impedes agricultural development. At issue is the ability of "outsiders" seeking to expand their agricultural operations to gain access to land held under customary tenure. Steven Lawry (chap. 2) and Mahir Şaul (chap. 3) illustrate, to the contrary, that land transfers are commonplace between indigenous landholders and outsiders in rural Lesotho and Burkina Faso. Their case studies highlight the flexibility of indigenous tenure systems by showing how land borrowing and leasing arrangements accommodate the needs of landless and commercial farmers in areas with different population densities. Lawry demonstrates how sharecropping and leasing provide ample security to farmers in densely populated areas of Lesotho. Şaul turns the neoclassical concern with security on its head by arguing that a major reason why transfers take place in Burkina Faso is because the *lender* feels secure that his permanent rights in the land are recognized. The flexibility of the system breaks down only when the lender feels insecure about regaining control over borrowed land.<sup>82</sup> Şaul also challenges the evolutionary model of progressive individualization by noting how the expansion of commodity production has strengthened lineage control over land in Bare. Both illuminate some of the interests and circumstances behind the persistence of customary tenure despite the attempts of government planners and international aid donors to transform these systems.

Conflicts over land use and control in pastoral development is the central theme of chapters 4 and 5. Richard Werbner examines the strategies of elites in Botswana to acquire land for commercial agriculture and livestock raising. What has been condemned by many observers as one of Africa's great enclosure movements is shown by Werbner to be a more complicated and less deterministic process. His attention to power struggles over land access and control among "competitive and disunited elites" reveals a situation of incomplete privatization of land. Borehole owners and those possessing ranch leases continue to practice extensive, open-range livestock raising for political and economic reasons. In fact, it appears that herd mobility across the unenclosed range is greater today than in the past. Yet, these new claims to land conflict with the rights of others like the hunting-gathering San and Barolong agropastoralists whose common land has been eaten up by powerful landholders.

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Werbner shows how elites have historically secured land through their political influence and by strengthening their “organic links” with rural areas through such strategies as retribalization and neopatrimonialism. It is only within such cultural, political, and historical-geographic contexts, he argues, that one can understand the forms and outcomes of land conflicts in contemporary Botswana.

My own contribution (chap. 5) examines the origins and failure of a Fulani sedentarization scheme in northern Côte d’Ivoire. The case study shows that the interactive effects of land conflicts between different groups at three overlapping levels (local, regional, and national) undermine both the expansion of Fulani livestock production and the intensification of agricultural systems in the savanna region. The scheme’s failure is attributed to the inadequacy of technocratic approaches to solving interlocking political, economic, and human ecological problems.

In summary, the circulation of land via borrowing, inheritance, leasing, and pledging is a key characteristic of flexible indigenous tenure systems. Land was even alienable during the precolonial period, a type of transfer that should not be seen exclusively as an outgrowth of capitalist land markets.<sup>83</sup> The issue of secure rights in land under indigenous control cannot be answered outside of those social systems in which rights are assumed, negotiated, and lost. As Okoth-Ogendo argues, the content and longevity of these rights range along a continuum from “the most temporary and functionally specific allocation of power . . . [to] the full complement of power in respect to some or all functions.”<sup>84</sup> The degree of security or individual control can swing back and forth along this continuum of rights, depending on the extent of one’s ability to engage in the process of tenure building. By tenure building, Okoth-Ogendo means “the expansion and continuous vindication of particular allocations of power in specific production contexts.”<sup>85</sup> In this sense, the process of acquiring and defending rights in land is inherently a political process based on power relations among members of the social group. That is, membership in the social group is, by itself, not a sufficient condition for gaining and maintaining access to land. A person’s status (age, gender, ethnic group, elite group affiliations) can and often does determine his or her capacity to engage in tenure building. It is within this realm of inter- and intrahousehold politics that we turn in the next section of this book to examine the implications of changing conditions of production for the struggle over rights in land.

#### Access to Land and Agrarian Politics

Watts (chap. 6) opens the black box of intrahousehold production relations by focusing on conflicts over access to irrigated rice land in The

Gambia. The catalyst for these conflicts is the intensification of labor associated with the double-cropping of rice. By classifying newly formed rice plots as “household” fields in which all household members must work, Mandinka men attempt to monopolize control over land and crop rights. Mandinka women, however, are shown losing their individual swamp rice fields as their land is incorporated into the irrigated perimeters and reclassified as household fields. Many women have resisted this renaming of fields by withdrawing their labor power and contesting their de facto dispossession through appeals to project personnel and the courts. The complicity of project management in the “interpretive struggles” over land, labor, and crop rights is related to its overriding concern with meeting productivity goals. Watts shows that property rights are defined by social relationships that are represented in cultural forms such as language, gender roles, and labor arrangements. Thus, struggles over land and labor will often take the form of interpretive struggles over meaning in which “the power to name” can be a highly political issue.

In a different context, Fiona Mackenzie (chap. 7) addresses similar issues. Her focus is on how Kikuyu men seek to control land claimed by women by manipulating the tradition of *mbari*, the basic kinship and territorial unit of the past. They do this by invoking customary inheritance rules ostensibly to maintain the *mbari* territorial integrity. However, Mackenzie shows that the accumulation of land by individuals since the 1930s has considerably weakened this institution. The recourse to *mbari* authority represents, she argues, a re-creation of custom to mask ongoing processes of socioeconomic differentiation. Like Mandinka women in The Gambia, Kikuyu women are contesting these claims in the courts and are manipulating their own tradition of taking a “female husband” to preserve some of their rights in land.

Like Watts, Peter Bloch (chap. 8) also looks at changing patterns of land access and control in the context of an irrigated rice project, this time among the Soninké in the Bakel area of the Senegal River valley. His study focuses on the distributional effects of the new land use and tenure arrangements on casted people, former slaves, and women in the area. The results indicate that former nobles are seeking to exclude both women and other subordinate groups from acquiring improved land. The dispossessed have responded to these pressures by establishing their own perimeters in a few areas. But the most significant trend appears to be the strengthening of Soninké elite control over land and labor as “former” nobles acquire land in which their “former” dependents work. In sum, despite the purported egalitarian orientation of the irrigation scheme, the landholding elite is currently using new mechanisms of land control to perpetuate their social, political, and economic dominance.

Tenure  
building

In summary, the papers in Part II highlight the relationship between power relations and rights in land and how these relationships vary and change under different historical situations. Struggles over productive resources have historically taken place between the rich and powerful and the underclasses. The nature and outcome of these struggles are linked to changes in the conditions of production and the ability of individuals and groups to take advantage of new opportunities to improve their social and economic position within the community and household. In the context of these changing conditions, in which the meaning and substance of power relations are frequently contested, the outcome of these struggles is not predetermined by wealth and class.<sup>86</sup> Despite the efforts of men and nobles to reassert their hegemonic control over agricultural resources, women and other subordinate groups are meeting these challenges with some success. The ability of women and former slaves and serfs to open their own irrigated perimeters in the Bakel area of Senegal is illustrative of how the underclasses can alter previously entrenched relationships.

### **Radical Agrarian Reform and Agricultural Performance**

A distinction is often made between agrarian reform and land reform. Land reform generally refers to a reorganization of tenure arrangements and landholdings that often assumes two basic forms: the breakup of large holdings and their redistribution and the consolidation of fragmented holdings into a single field. Agrarian reform often combines some type of land reform with specific interventions designed to promote rural development such as the expansion of extension services, agricultural credit, and improved infrastructure to rural producers.<sup>87</sup> The papers in Part III examine the attempts of colonial and postcolonial governments in eastern and southern Africa to implement agrarian reform programs to increase agricultural output. The case studies concentrate on states that have pursued socialist paths in which the development of collective agriculture (producer co-ops, state farms) has been a central feature of reform policies. Most of the authors concur on the dismal results of agrarian reform in these countries in raising agricultural productivity. The authors analyze the nature of this unimpressive performance and explain why radical agrarian reform has not been the panacea for the production problems plaguing African rural economies.

Okoth-Ogendo (chap. 9) contributes a historical overview of tenure reform policies in eastern and southern Africa. He identifies many continuities in the diagnoses of and prescriptions for various agrarian crises over the past hundred years. Repeated attempts at reform have failed,

he argues, because of the view that tenure reform would, by itself, have a "broad-spectrum effect" that would cure the various ills afflicting rural society. Okoth-Ogendo views such prescriptions as illusory because they invariably blame the victim for his or her situation. Because they fail to identify correctly the production and marketing problems facing peasants, he views such approaches as diversionary.

Dessalegn Rahmato (chap. 10) evaluates the impact of the radical Ethiopian land reform decree of 1975 on the agricultural performance of different farm enterprises. He presents evidence showing that "private" peasant production outperformed state farms and cooperatives despite the massive channeling of resources to the collective sector. The overall decline in per capita agricultural output in Ethiopia is attributed to the "double subordination" of the peasantry. Peasants were subordinate, on the one hand, to the state by policies biased toward socialist forms of production and, on the other, to urban populations that were the main beneficiaries of fixed grain prices. Dessalegn acknowledges some of the positive social features of the land reform but is sharply critical of the Ethiopian government's doctrinal views of socialist agriculture. Important agrarian policy changes have recently been implemented in the rural areas. The new thinking is now in favor of peasant endeavor, reversing the earlier emphasis on collectivization. The structure of smallholder agriculture and most of the constraints inhibiting peasant production still remain, but the collective ("socialist") sector has now lost its significance. Dessalegn's contribution is important as a document in the history of agrarian contradictions in Ethiopia and should serve as a useful source to students concerned with Afro-Marxist agrarian history.

As in Ethiopia, land rights were concentrated in the Somali state following its 1975 land reform. As Michael Roth remarks in chapter 11, the official rationalization for nationalizing land has been to encourage the "modernization" of agriculture and to guide agrarian change in an equitable and economically efficient direction. This process in Somalia entails the elimination of indigenous tenure systems that are perceived to be inefficient, environmentally destructive, and conducive to agrarian capitalist processes such as land speculation and concentration. Roth's study presents the results of a Land Tenure Center study examining the process of land registration and security of tenure in the lower Shebelle River valley. The most important trends he discusses are heightened peasant insecurity due to conflicts between customary and national land systems, rural land speculation by urban elites, and a reduced flexibility of indigenous tenure systems with little progress made toward equity and productivity. Taken together, Roth and Dessalegn show how the *étatist* nature of agrarian reform in the Horn of Africa fostered increas-

ingly rigid land allocation and management policies. It is this rigidity, in contrast to the flexible use of resources under indigenous tenure systems, that partly accounts for the highly inefficient farming systems characteristic of the region in the 1980s.

The final two contributions focus on the processes of agrarian reform in southern Africa. Merle Bowen's study (chap. 12) of Mozambique's recent policy shift from a collective agricultural strategy to one oriented toward private and peasant farming in many ways complements Dessalegn's work on Ethiopia's reform experience. Like Ethiopia, Mozambique initially followed the orthodox socialist path of collective agriculture with a heavy emphasis on state farms. The same problems of poor performance, despite massive capital investments in this sector, have prompted officials of the ruling Frelimo party to seek alternative solutions to increasing agricultural output. Bowen locates the policy shift to a "private" farming strategy within the very difficult circumstances of Mozambique's decolonization process, internal and external aggression, the financial incapacity of the state to sustain the collective sector, and the pressures of foreign aid donors who are only willing to fund private initiatives. She notes that agricultural output has substantially increased in areas where the state has redistributed state farmland to peasants and smallholders. The flexible approach of Mozambican officials toward sharecropping and wage labor markets contrasts with the more rigid position of the Ethiopian government. Indeed, Mozambique appears to be succeeding in creating an "agricultural pluralism" that Dessalegn proposes for Ethiopia. Bowen wonders, however, if the processes of socioeconomic differentiation presently occurring in her study area will ultimately compromise the goals of equity for the sake of productivity.

The contribution by Terence Ranger (chap. 13) on agrarian reform in the so-called communal areas of Zimbabwe is a fitting closure to this collection. It brings us full circle on the debate over the potential of communal tenure systems for promoting agricultural growth. He begins by showing how the notion of communal tenure as it is currently conceptualized was not at all typical of the precolonial period. It emerged as a colonial construct during the 1920s and is shown by Ranger to be continually re-created by agrarian reform programs emphasizing egalitarian landholdings. He views current initiatives to reshape land tenure systems in the Communal Areas as an ironic continuity for a purportedly revolutionary government. He probes into the class nature of the communal area debate and notes that well-established commercial farmers have succeeded in shifting the discussion from land redistribution and resettlement for land hungry peasants to land tenure reform within the Communal Areas. Like Cliffe,<sup>88</sup> Ranger stresses the importance of community democratic control in any restructuring of the existing "flexible

communal tenure" system. He concludes by viewing the absence of tenure reform legislation in Zimbabwe since independence as an encouraging sign that the debate about the land question and agricultural performance may be moving in potentially innovative directions. The case of Zimbabwe is illustrative of other countries where future agrarian reform legislation will reflect the outcome of struggles between contending groups such as large-scale commercial farmers and peasants who seek to gain access to and defend their control over productive resources. The papers in this collection suggest that whatever the outcome of these struggles, they will have important implications for agricultural performance in sub-Saharan Africa.

To reiterate the central argument of this book, tenure reform is not a cure-all for improving African agricultural performance. This is not to say that tenure constraints do not exist. As Bruce persuasively argues, there may be a need to modify certain features of indigenous systems when these changes are justified. But rather than attempting to replace these systems with European models, tenure reform strategies should build on the strengths of indigenous systems. Moreover, what appears to be a tenure constraint might in fact be a non-tenure-related problem requiring a nontenure solution. Too often, sweeping changes are proposed from both the left and right wings of the political-economic spectrum without any serious enquiry into the nature of the production problem. Instead, this book calls for pragmatism and a respect for the flexibility of indigenous tenure systems. At the same time, this is not a populist appeal that ignores the complicated issues of state intervention, socioeconomic differentiation, and the social relations of production.<sup>89</sup> The attention given here to social and political processes behind the struggles over productive resources seeks to situate the land question beyond the particularistic features of local tenure systems. This book examines the complicated relationships between these changing systems and agricultural development from a multidisciplinary perspective. Its major objective is to advance the debate over the land question and agricultural performance in Africa. In the process, it also seeks to temper the powerful forces bent on reforming tenure systems in the direction of privatization on the grounds that this is one key to increasing productivity and getting Africa out of its crisis. The case studies collected here argue that these doctrinal responses are inappropriate and are to be resisted.

## Notes

For comments on an earlier draft of this introduction, I want to thank Sara Berry, Donald Crummey, Mahir Şaul, and Michael Watts.

- 1 By agrarian crisis, I am referring to the decline in per capita agricultural production since the 1960s. For two influential analyses of this crisis, see World Bank, *Accelerated Development in Sub-Saharan Africa: An Agenda for Action* (Washington, D.C., 1981), and S. Berry, "The Food Crisis and Agrarian Change in Africa," *African Studies Review* 27, 2 (1984): 59–112.
- 2 See C. Eicher and D. Baker, *Research on Agricultural Development in Sub-Saharan Africa: A Critical Survey* (East Lansing, 1982): 98; D. Grigg, *The World Food Problem: 1950–1980* (Oxford, 1985): 171.
- 3 It is estimated for the entire continent that 60 to 70 percent of the land is not suitable for either livestock or crop production due to deserts, mountains, rainfall, poor soils, and disease. See J. Cohen, "Land Tenure and Rural Development in Africa," in R. Bates and M. Lofchie (eds.), *Agricultural Development in Africa* (New York, 1980): 357–358.
- 4 Swindell, K., and A. T. B. Mamman, "Land Expropriation and Accumulation in the Sokoto Periphery, Northwest Nigeria, 1976–86," *Africa* 60, 2 (1990): 173–187.
- 5 J. Davison (ed.), *Agriculture, Women and Land: The African Experience* (Boulder 1988); and R. Downs and S. Reyna (eds.), *Land and Society in Contemporary Africa* (Hanover, N.H., 1988).
- 6 J. Bruce, *Land Tenure Issues in Project Design and Strategies for Agricultural Development in Sub-Saharan Africa*, Land Tenure Center Paper 128 (Madison, 1986); Cohen, "Land," 349–389; Lord Hailey, *An African Survey* (London, 1957): 685–815; and R. Noronha, *A Review of the Literature on Land Tenure Systems in Sub-Saharan Africa*, World Bank, Research Unit, Agricultural Development Department (Washington, D.C., 1985).
- 7 F. Falloux, "Land Management, Titling and Tenancy," in T. Davis and I. Schirmer (eds.), *Sustainability Issues in Agricultural Development* (Washington, D.C., 1987): 190–208.
- 8 For an excellent overview of recent social scientific approaches to African tenure systems, see the special issue of *Africa* 59, 1 (1989), "Access, Control and Use of Resources in African Agriculture."
- 9 For the most insightful inquiries addressing this question see Sara Berry, "Concentration without Privatization? Some Consequences of Changing Patterns of Rural Land Control in Africa," in Downs and Reyna (eds.), *Land*, 53–75, and S. Berry, "Property Rights and Rural Resource Management: The Case of Tree Crops in West Africa," *Cahiers d'ORSTOM Sciences Humaines* 24, 1 (1988): 3–16; and H. W. O. Okoth-Ogendo, "The Perils of Land Tenure Reform: The Case of Kenya," in J. Arntzen, L. Ngcongco, and S. Turner (eds.), *Land Policy and Agriculture in Eastern and Southern Africa* (Tokyo, 1986). A network of francophone Africanists is examining the impact of the state and capital on landholding systems in rural and urban areas of sub-Saharan Africa. See E. Le Bris, E. Le Roy, and F. Leimforfer (eds.), *Enjeux fonciers en Afrique noire* (Paris, 1983); B. Crousse, E. LeBris, and E. Le Roy, *Espaces disputés en Afrique noire* (Paris, 1986); and R. Verdier and A. Rochegude, *Systèmes fonciers à la ville et au village* (Paris, 1986). Also, see the special issues of *African Perspectives* 1 (1979) and *Politique*

*Africaine*, 1 (1986) which contain articles on the politics of land reform and agrarian change in sub-Saharan Africa.

- 10 World Bank, *Sub-Saharan Africa: From Crisis to Sustainable Growth* (Washington, D.C., 1989): 90, 100–104.
- 11 See P. Peters, "Embedded Systems and Rooted Models," in B. McKay and J. Acheson (eds.), *The Question of the Commons: The Culture and Ecology of Communal Resources* (Tucson, 1987): 171–194.
- 12 The focus in this historical section on transitions to individualized holdings versus collective forms typical of socialist states such as Ethiopia is based on the fact that most African states have pursued the capitalist road and that the current direction of reform in some socialist states such as Mozambique is toward individual holdings.
- 13 In posing these questions, I have been influenced by the work of Chauveau et al. on the emergence and depiction of African land tenure systems in the administrative and scientific literature. See J.-P. Chauveau, J.-P. Dozon, E. Le Bris, E. Le Roy, G. Salem, and F. G. Snyder, "Rapport introductif au journées d'études," in Le Bris et al., *Enjeux*, 17–43.
- 14 The focus here on the official and scholarly literature is linked to my interest in the evolution of land tenure policies and the gap between development theory and reality. The official literature is fundamental to this policy overview, while the scholarly literature illuminates the social and political origins and practical consequences of these policies. The late-nineteenth-century starting date for the first period is due to the fact that most of sub-Saharan Africa was partitioned into European colonies at this time.
- 15 Even in French West Africa where "direct rule" was the official method of administration, the French government recognized the land rights of indigenous peoples. However, its claim to be the owner of "vacant lands" introduced much ambiguity to this official position. See Hailey, *African*, 743–749.
- 16 C. K. Meek, *Land Law and Custom in the Colonies* (London, 1946): 10, 22.
- 17 For examples of the colonial state granting chiefs the right to control land, see Hailey, *African*, 709, 731, 792. For a discussion of the transformation of earth priests into "land lords," see E. Colson, "The Impact of the Colonial Period on the Definition of Land Rights," in V. Turner (ed.), *Colonialism in Africa 1870–1960*, vol. 3, *Profiles of Change: African Society and Colonial Rule* (Cambridge, 1971): 193–215. On the construction of communal tenure by colonial authorities, see A. Cheater, "The Ideology of 'Communal' Land Tenure in Zimbabwe: Mythogenesis Enacted," *Africa* 60, 2 (1990): 188–206. For a more general discussion, see E. Hobsbawm and T. Ranger (eds.), *The Invention of Tradition* (Cambridge, 1983).
- 18 Colson, "The Impact," 197.
- 19 See P. Hill, "Three types of Southern Ghanaian Cocoa Farmer," in D. Biebuyck (ed.), *African Agrarian Systems* (Oxford, 1963): 203–223; and A. Köbben, "Land as an Object of Gain in a Non-Literate Society: Land-Tenure among the Bété and Dida (Ivory Coast, West Africa)," in Biebuyck, *African Agrarian Systems*, 245–264.
- 20 Many observers have commented on the adaptiveness and dynamism of

- African tenure systems. See, for example, Colson, "The Impact," 196–197; Hill, "Three Types," 215; Meek, *Land*, 25 and Bruce, chap. 1, this volume.
- 21 To give credit where it is due, Lucy Mair wrote the chapter, "The Land" (chap. 11) in Hailey's *African Survey*. For a discussion on the origins and writing of this monumental work, see J. W. Cell, "Lord Hailey and the Making of the African Survey," *African Affairs* 88, 355 (1989): 481–505; and E. B. Worthington, "Lord Hailey on the African Survey: Some Comments," *African Affairs* 89, 357 (1990): 579–583.
- 22 A. J. Christopher, *Colonial Africa* (London, 1984): 58–60.
- 23 Hailey, *African*, 760.
- 24 Ibid., 711. For a detailed discussion of *thangata*, see L. White, *Magomero* (Cambridge 1987): 99–120.
- 25 I am grateful to Sara Berry for this observation; personal communication, September 7, 1989.
- 26 See Hailey, *African*, 802–803; and M. Chanock, "A Peculiar Sharpness: An Essay on Property in the History of Customary Law in Colonial Africa," *Journal of African History* 32, 1 (1991): 65–88.
- 27 Archives Nationales de la République de Côte d'Ivoire, 5792, Côte d'Ivoire, Rapport politique annuel, 1932. Emphasis in original.
- 28 See Meek, *Land*, 24–29; Hailey, *African*, 802–809.
- 29 See Hailey, *African*, 803.
- 30 Meek, *Land*, 14–15.
- 31 Hailey, *African*, 803–804.
- 32 See W. Beinart, "Soil Erosion, Conservationism and Ideas about Development: A Southern African Exploration, 1900–1960," *Journal of Southern African Studies* 11, 1 (1984): 52–83; M. Drinkwater, "Technical Development and Peasant Impoverishment: Land Use Policy in Zimbabwe's Midland Province," *Journal of Southern African Studies* 15, 2 (1989): 287–305; K. Showers, "Soil Erosion in the Kingdom of Lesotho: Origins and Colonial Response, 1830–1950s," *Journal of Southern African Studies* 15, 2 (1989): 263–286; M. Stocking, "Soil Conservation Policy in Colonial Africa," *Agricultural History* 59, 2 (1985): 148–161.
- 33 Hailey, *African*, 765–766; Beinart, "Soil Erosion," 69–83; Stocking, "Soil Conservation Policy," 153–156.
- 34 See P. Blaikie, *The Political Economy of Soil Erosion* (London, 1985): 53–60.
- 35 According to Noronha, the population of Zimbabwe increased sixfold from an estimated 490,000 to 3.1 million over the period 1901–1962. Kenya's population doubled over the same period, rising from 4 million to 8.4 million. Noronha, *Review*, 84.
- 36 Blaikie, *Political Economy*, 59; Stocking, "Soil Conservation Policy," 155–160; D. Anderson and R. Grove (eds.), *Conservation in Africa: People, Policies and Practice* (Cambridge, 1987): 5–6.
- 37 Stocking, "Soil Conservation Policy," 158.
- 38 Meek, *Land*, 6.
- 39 Anderson and Grove, *Conservation*, 8.
- 40 Beinart, "Soil Erosion," 79.
- 41 The data are taken from the World Bank, *Accelerated*, 3; the quality of these data is discussed by Berry, "Food Crisis."
- 42 Falloux, "Land Management," 190–208; R. Ayers, *Banking on the Poor: The World Bank and World Poverty* (Cambridge, 1983): 104–105.
- 43 Falloux, "Land Management," 193–196. For a useful discussion of the literature on African land tenure systems, see Noronha, *Review*.
- 44 See Noronha, *Review*, Cohen, "Land," and J. Bruce, *Land Tenure*; World Bank, *Sub-Saharan*.
- 45 To be fair, both Hailey and Meek admit the appalling ignorance of indigenous tenure systems by colonial officials and call for further study of this topic. Meek, in particular, recognizes that these systems are flexible and have adjusted to changing conditions. Meek, *Land*, 23.
- 46 P. Bohannan, "'Land,' 'Tenure' and Land-Tenure," in Biebuyck, *African Agrarian Systems* 101–115; P. Hill, "Three types of Ghanaian Cocoa Farmer," in Biebuyck, *African Agrarian Systems*, 203–223.
- 47 Bohannan, "'Land,'" 101–103.
- 48 A. Richards, "Some Effects of the Introduction of Individual Freehold into Buganda," in Biebuyck, *African Agrarian Systems*, 267–280; C. White, "Factors Determining the Content of African Land Tenure Systems in Northern Rhodesia," in Biebuyck, *African Agrarian Systems*, 364–373.
- 49 White, "Factors," 370.
- 50 R. Hecht, "Immigration, Land Transfer and Tenure Change in Divo, Ivory Coast, 1940–1980," *Africa* 55, 3 (1985): 319–336; Cohen, "Land Tenure," in Biebuyck, *African Agrarian Systems*, 59–60.
- 51 Cohen, "Land Tenure," 358–359.
- 52 P. Gourou, *L'Afrique Tropicale: Nain ou géant agricole?* (Paris, 1991): 156.
- 53 World Bank, *Sub-Saharan*, 104; my emphasis.
- 54 For a useful critique, see D. Atwood, "Land Registration in Africa: The Impact on Agricultural Production," *World Development* 18, 5 (1990): 659–671.
- 55 A. Haugerud, "Land Tenure and Agrarian Change in Kenya," *Africa* 59, 1 (1989): 62–90.
- 56 S. Migot-Adholla, P. Hazell, B. Blarel, and F. Place, "Indigenous Land Rights Systems in Sub-Saharan Africa: A Constraint on Productivity?" *The World Bank Economic Review* 5, 1 (1991): 155–175.
- 57 Noronha, *Review*, 199–200.
- 58 P. Harrison, *The Greening of Africa: Breaking through in the Battle for Land and Food*, (New York, 1987): 59.
- 59 Ibid., 313–314, 328–329; L. Timberlake, *Africa in Crisis: The Causes, the Cures of Environmental Bankruptcy* (London, 1985): 73.
- 60 Blaikie, *Political Economy*, 53–60.
- 61 Beinart notes that agricultural officials viewed the commercialization of livestock as a way of breaking down the so-called cattle complex, which they

- blamed for the erosion of rangelands. However, he also notes that conservation officers in Nyasaland cautioned against expansion of certain cash crops in areas where land was already under intensive use since their cultivation threatened to erode the land. See Beinhart, "Soil Erosion," 73-75.
- 62 Watts and Blaikie and Brookfield attempt to forge such linkages in their pioneering work in political ecology. See M. Watts, "Drought, Environment and Food Security: Some Reflections on Peasants, Pastoralists and Commoditization in Dryland W. Africa," in M. Glantz (ed.), *Drought and Hunger in Africa: Denying Famine a Future* (Cambridge, 1987): 171-211; P. Blaikie and H. Brookfield (eds.), *Land Degradation and Society* (London, 1987).
  - 63 M. Horowitz and P. Little, "African Pastoralism and Poverty: Some Implications for Drought and Famine," in M. Glantz, *Drought and Hunger*, 59-82. The tragedy of the commons model is found in G. Hardin, "The Tragedy of the Commons," *Science* 162 (1968): 1243-1248.
  - 64 Blaikie and Brookfield, *Land Degradation*, 189.
  - 65 L. Cliffe, "The Conservation Issue in Zimbabwe," *Review of African Political Economy* 42 (1988): 48-58.
  - 66 A pertinent review is Peters, "Embedded Systems."
  - 67 J. Gallais, "Essai sur la situation actuelle des relations entre pasteurs et paysans dans le Sahel ouest-africain," in *École Pratiques des Hautes Études, Études de géographie tropicale offerts à Pierre Gourou* (Paris, 1972): 301-313. Also, see J. Gritzner, *The West African Sahel: Human Agency and Environmental Change* (Chicago, 1989): 74, 108.
  - 68 Horowitz and Little, "African Pastoralism," 67.
  - 69 P. Molutsi, "The State, Environment and Peasant Consciousness in Botswana," *Review of African Political Economy* 42 (1988): 40-47; Horowitz and Little, "African Pastoralism"; P. Little, "Absentee Herdowners and Part-Time Pastoralists: The Political Economy of Resource Use in Northern Kenya," *Human Ecology* 13, 2 (1984): 131-51.
  - 70 Peters, "Embedded Systems," 181.
  - 71 Ibid., 192.
  - 72 S. Berry, "Property Rights."
  - 73 S. Berry, "Concentration."
  - 74 J. Davison, "Land and Women's Agricultural Production: The Context," in Davison, *Agriculture, Women, and Land*, 1-32.
  - 75 See, especially, the chapters by Carney and Bernal documenting the processes through which women lost their rights in land in the context of irrigated agricultural development projects. J. Carney, "Struggles over Land and Crops in an Irrigated Rice Scheme: The Gambia," Davison, *Agriculture, Women, and Land*, 59-78; V. Bernal, "Losing Ground—Women and Agriculture on Sudan's Irrigated Schemes: Lessons from a Blue Nile Village," Davison, *Agriculture, Women, and Land*, 131-156.
  - 76 M. Goheen, "Land Accumulation and Local Control: The Manipulation of Symbols and Power in Nso, Cameroon," in Downs and Reyna, *Land*, 280-308.
  - 77 P. Shipton, "The Kenyan Land Tenure Reform: Misunderstandings in the Public Creation of Private Property," in Downs and Reyna, *Land*, 91-135; C. Raynaut, "Aspects of the Problem of Land Concentration in Niger," in Downs and Reyna, *Land*, 221-242.
  - 78 A. Hoben, "The Political Economy of Land Tenure in Somalia," in Downs and Reyna, *Land*, 192-220.
  - 79 Ibid., 216.
  - 80 V. Uchendu, "The Impact of Changing Agricultural Technology on African Land Tenure," *Journal of Developing Areas* 4 (July 1970): 477-486.
  - 81 Cohen, "Land Tenure," 356.
  - 82 I make a similar point in my chapter about the reluctance of Senufo landholders to lend land to Fulani herders because government-subsidized pastoral infrastructure is viewed as long-term improvements that make it difficult to reclaim land at a later date.
  - 83 Evidence of precolonial land sales can be found for Ghana, Kenya, and Sudan in Hill, "Three Types"; A. Fleuret, "Some Consequences of Tenure and Agrarian Reform in Taita, Kenya," in Downs and Reyna, *Land*, 136-158; and R. O'Fahey, *Land in Dar Fur: Charters and Reliable Documents from the Dar Fur Sultanate* (Cambridge, 1983).
  - 84 H. W. O. Okoth-Ogendo, "Some Issues of Theory in the Study of Tenure Relations in African Agriculture," *Africa* 59, 1 (1989): 6-17.
  - 85 Ibid.
  - 86 I am grateful to Sara Berry for raising this issue, although the analysis is my own.
  - 87 J. P. Dickenson, et al., *A Geography of the Third World* (New York, 1983): 121-126.
  - 88 L. Cliffe, "Zimbabwe's Agricultural 'Success' and Food Security in Southern Africa," *Review of African Political Economy* 43 (1988): 4-25.
  - 89 For an insightful critique of populist approaches to African land use, see M. Watts, "'Good try, Mr. Paul': Populism and the Politics of African Land Use," *African Studies Review* 26, 2 (1983): 73-83.